

Standard Formats prescribed by Government of A. P. under A.P. Civil Services (Classification, Control and Appeal) Rules, 1991

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Standard Formats prescribed by Government of A. P. under A.P. Civil Services (Classification, Control and Appeal) Rules, 1991

ANDHRA PRADESH

India

Standard Formats prescribed by Government of A. P. under A.P. Civil Services (Classification, Control and Appeal) Rules, 1991

Rule

STANDARD-FORMATS-PRESCRIBED-BY-GOVERNMENT-OF-A-P-UNDER-A-P-CIVIL-SERVICES-CLASSIFICATION-CONTROL-AND-APPEAL-RULES-1991 of 1991

Published on 1 March 1996

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Standard Formats prescribed by Government of A. P. under A.P. Civil Services (Classification, Control and Appeal) Rules, 1991

Published vide Notification G.O.Ms.No. 82, G.A.D., Dated 1st March, 1996

Read : - G.O. Ms. No. 487, General Administrator (Ser.C) Department, Dated 14.9.1992.

1.

Order.

- Under the provisions of Andhra Pradesh Civil Services (Classification, Control and Appeal) Rules, 1991, the competent authority should issue orders in disciplinary cases after due consideration, in the relevant proforma annexed to this Order as indicated below

(1)

Under F.R. 53(2), the suspended official shall submit to the competent authority, a certificate that he/she is not engaged in any other employment, business, profession or vacation. The format of certificate to be submitted shall be in the format as shown in Form -I annexed to this Order.

(2)

The competent authority shall frame the Articles of charges in a disciplinary case in the format as shown in Form -II annexed to this order.

(3)

The competent authority shall issue an order of revocation of a suspension order in the format as shown in Form III annexed to this order.

(4)

The competent authority shall issue orders for appointing Inquiry Authority in a disciplinary case in the format as shown in Form -IV annexed to this order.

(5)

The competent authority shall issue orders for appointment of a Presenting Officer under Rule 20(5) (c) in the format as shown in Form -V annexed to this order.

(6)

The competent authority shall frame the Memorandum of charges for imposing minor penalty in the format as shown in Form -VI annexed to this order.

(7)

The competent authority shall initiate Minor Penalty Proceedings in the format as shown in Form -VII annexed to this order.

(8)

The competent authority shall initiate disciplinary action in common proceedings in the format as shown in Form -VIII annexed to this order.

2.

All Departments of Secretariat, Heads of Departments etc., are requested to bring these orders to the notice of all competent authorities.

Form I

Standard Form Of Certificate To Be Furnished By The Suspended Official Under F.R. 53(2)

I(name of Government servant) having been placed under suspension by Order No..... Dated while holding the post of.....do hereby certify that I have not been employed in any business.

Signature

Name of the Government servant:

Address:

Form II

Standard Form Of Articles Of Charges

Public Services - Sri..... (name and designation)Department -
Departmental Proceedings under Rule 20 of the Andhra Pradesh Civil Services (Classification, Control and Appeal) Rules, 1991 - Articles of charges - Issued.

G.O. Rt. No.

Dated :

Order :

1. It is proposed to hold an enquiry against Sri..... (name and designation)..... Department in accordance with the procedure laid down in Rule 20 of the Andhra Pradesh Civil Services (Classification, Control and Appeal) Rules, 1991.

2. The substance of the imputations of misconduct or misbehaviour in respect of which the inquiry is proposed to be held

is set out in the enclosed statement of articles of charges (Annexure - I). A list of documents by which, and a list of witnesses by whom, the articles of charges are proposed to be sustained are also enclosed (Annexure - II and III).

3.

Sri.....(Name and designation) is directed to submit within 10 days of the receipt of this order, a written statement of his/her defence.

4.

Sri.....(Name and designation) is informed that an inquiry will be held only in respect of those articles of charges as are not admitted. He/She should, therefore, specifically admit or deny each article of charge.

5.

Sri.....(Name and designation) is further informed that if he/she does not submit his/her written statement of defence on or before the date specified in para -3 above further action will be processed based on the material available.

6.

Attention of Sri.....is invited to Rule 24 of the Andhra Pradesh Civil Services (Conduct) Rules, 1964, under which no Government servant shall bring or attempt to bring any political or outside influence to bear upon any superior authority to further his interests in respect of matters pertaining to his service under the Government. If any representation is received on his behalf from another person in respect of any matter dealt with in these proceedings it will be presumed that Sri..... is aware of such a representation and that it has been made at his instance and action will be taken against him for violation of Rule 24 of the Andhra Pradesh Civil Services (Conduct) Rules, 1964.

The receipt of the Memorandum may be acknowledged.

(In The Name Of The Disciplinary Authority)

To

Sri.....

Annexure - I

Statement of articles of charge framed against Sri.....

(Name and Designation)

Article - I : - That the said Sri..... (Name and Designation) while functioning as..... during the period.....

Basis of the Charge : -

Article - II : - That during the aforesaid period and while functioning in the aforesaid office, the said Sri..... (Name and Designation).

Basis of the Charge : -

Article - III : - That during the aforesaid period and while functioning in the aforesaid Office, the said Sri..... (Name and Designation).

Basis of the Charge : -

Annexure - II

List of documents by which the articles of charge framed against Sri..... (Name and designation) are proposed to be sustained.

Annexure - III

List of witnesses by whom the articles of charge framed against Sri..... (Name and designation) are proposed to be sustained.

Form III

Standard Form Of Order For Revocation Of Suspension Order

(Rule 8(5)(c) of A.P. Civil Services (C.C.A.) Rules, 1991)

Dated.....

MEMO. NO.....

Sub : -

Ref : -

Whereas, an order placing Sri..... (Name and Designation of the Government Servant) under suspension was made/was deemed to have been made by..... on

2. Now, therefore, (the authority which made or is deemed to have made the order of suspension or any authority to

which that authority is subordinate) in exercise of the powers conferred by clause (c) of sub -rule(5) of Rule 8 of the Andhra Pradesh Civil Services (Classification, Control and Appeal) Rules, 1991, hereby revoke the said order of suspension with immediate affect.

(In The Name Of Competent Authority/disciplinary Authority)

To

Sri.....

(Name and designation of suspended Officer)

Sri.....

(Name and designation of appointing authority)

Sri.....

(Name and designation of lending authority making orders of suspension)

Sri.....

(Name and designation of the authority making the order of suspension).

Form IV

Standard Form Of Order Relating To Appointment Of Inquiring Authority

(Rule 20 of A.P. Civil Services (C. C.A.) Rules, 1991)

Dated.....

MEMO. NO.....

Sub :

Whereas, an inquiry under Rule 20 of the A.P. Civil Services (Classification, Control and Appeal) Rules, 1991 is being held against Sri..... (Name and Designation of the Government Servant)

2. And Whereas, it is considered that an Inquiring Authority should be appointed to inquire into the charges framed against the said Sri.....

3. Now, Therefore, in exercise of the powers conferred by sub -rule (2) of Rule 20 of the said rules, the disciplinary authority hereby appoints Sri..... (Name and Designation of the Inquiring Officer) as the Inquiring Authority to inquire into the charges framed against the said Sri.....

SIGNATURE

Designation of the Competent Authority

COPY TO : (Name and designation of the Government Servant)

COPY TO : (Name and designation of the Inquiring Authority)

COPY TO : (Name and designation of the lending authority, where necessary) for information.

Form V

Standard Form Of Order Relating To The Appointment Of Presenting Officer

(Rule 20(5)(C) of A.P. Civil Services (C.C.A.) Rules, 1991)

Dated.....

MEMO. NO.....

Sub : -

Whereas, an inquiry under Rule 20 of the A.P. Civil Services (Classification, Control and Appeal) Rules, 1991 is being held against Sri..... (Name and Designation of the charged officer).

2. And Whereas, it is considered that a Presenting Officer should be appointed to present on behalf of the disciplinary authority the case in support of the articles of charge.

3. Now, Therefore, the disciplinary authority in exercise of the powers conferred by sub -rule (5) of Rule 20 of the said rules, hereby appoints [x x x]

[Omitted by G.O. Ms. No. 93, GA., (Ser -C) Department Dated 7 -2 -2011]

..... [x x x]

[Omitted by G.O. Ms. No. 93, GA., (Ser -C) Department Dated 7 -2 -2011]

Designation of the Presenting Officer) as the Presenting Officer.

(In The Name Of Disciplinary Authority)

COPY TO :

1. The Presenting Officer

2. The Charged Officer

3. The Inquiry Officer

Form VI

Standard Form Of Memorandum Of Charge For Minor Penalties

(Rule 22 of A.P. Civil Services (C.C.A.) Rules, 1991)

Dated.....

MEMO. NO.....

Sub: -

Sri..... (Designation)..... (Office in which working) is hereby informed that it is proposed to take action against him/her under Rule 22 of the Andhra Pradesh Civil Services (Classification, control and Appeal) Rules, 1991. A statement of the imputation of misconduct or misbehaviour on which action is proposed to be taken is enclosed.

2. Shri/Smt. is hereby given an opportunity to make such representation as he/she may wish to make against the proposal.

3. If Shri/Smt. fails to submit his/her representation within ten days of the receipt of this Memorandum, it will be presumed that he/she has no representation to make and orders will be liable to be passed against Shri/Smt. ex -parte.

4. The receipt of this Memorandum should be acknowledged by Shri/Smt.....

(In The Name Of Disciplinary Authority)

To

Shri/Smt.

Form VII

Standard Form For Initiation Of Minor Penalty Proceedings

(In cases where disciplinary authority decides to hold the enquiry)

(Rule 22 of A.P. Civil Services (C. C.A.) Rules, 1991)

Dated.....

Memo. No.....

Sub: -

In continuation of Memorandum No. Dated issued under Rule 22 of the A. P. C. S. (C.C.A.) Rules, 1991, it is considered necessary to hold an enquiry against Sri under Rule 22 of the A. P. C. S. (C.C.A.) Rules, 1991. The substance of the imputation of misconduct or misbehaviour in respect of which the inquiry is proposed to be held is set out in the enclosed statement of articles of charge and the imputation of misconduct or misbehaviour in support of each article of charge is enclosed (Annexure -I). A list of documents by which and a list of witnesses by whom the articles of charge are proposed to be sustained are also enclosed (Annexure -II and III).

2. Sri..... is directed to submit within ten days of the receipt of this Memorandum a written statement of his defence.

3. He is informed that an inquiry will be held only in respect of those articles of charge as are not admitted. He should, therefore, specifically admit or deny each article of charge.

4. Sri..... is further informed that if he does not submit his written statement of defence on or before the date specified in para 2 above, or otherwise fails or refuses to comply with the provisions of Rules 20 and 22 of the A. P. C. S. (C.C.A.) Rules, 1991 or the orders/directions issued in pursuance of the said rules the Inquiring Authority may hold the inquiry against him ex -parte.

5. Attention of Sri..... is invited to Rule 24 of the A. P. C. S. (Conduct) Rules, 1964 under which no Government servant shall bring or attempt to bring any political or outside influence to bear upon any superior authority to further his interests in respect of matters pertaining to his service under Government. If any representation is received on his behalf from another person in respect of any matter dealt with in these proceedings, it will be presumed that Sri..... is aware of such a representation and that it has been made at his instance and action will be taken against him for violation of Rule 22 of the Andhra Pradesh Civil Services (Conduct) Rules, 1964.

6. The receipt of this Memorandum may be acknowledged.

(In The Name Of Disciplinary Authority)

To

Sri.....

Enclosures : - Annexures I, II and III.

Form VIII

Standard Form Of Order For Taking Disciplinary Action In Common Proceedings

(Rule 24 of A.P. Civil Services (C.C.A.) Rules, 1991)

Dated.....

Memo. No.....

Sub : -

WHEREAS, the Government servants specified below are jointly concerned in a disciplinary case:

Sri.....

Sri.....

Sri.....

Sri.....

NOW, THEREFORE, in exercise of the powers conferred by sub -rules) and (2) of Rule 24 of the Andhra Pradesh Civil Services (Classification, Control and Appeal) Rules, 1991, the disciplinary authority hereby directs -

(i)

that disciplinary action against all the said Government servants shall be taken in a common proceedings.

(ii)

that..... (name and designation of the authority) shall function as the Disciplinary Authority for the purpose of the common proceedings and shall be competent to impose the following penalties, namely: -

(Here specify the penalties)

(iii)

that the procedure prescribed in Rules 20 & 21 or Rule 22 of the C.C.A. Rules, 1991 shall be followed in the said proceedings.

(In The Name Of Disciplinary Authority)

Copy to:

1. Sri..... (Name and Designation)

2. Sri..... (Name and Designation)

3. Sri..... (Name and Designation)

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